

Plaintiff's termination. Plaintiff contends the requested information is relevant to her claims for pregnancy discrimination, retaliation, and related causes of action, and that Defendant has failed to provide verified, Code-compliant responses despite extensive meet and confer efforts.

The Court finds the information sought is discoverable. California's discovery statutes are construed liberally, and a party is entitled to discovery of any nonprivileged matter relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. Information concerning other employees who made similar complaints to the same supervisors or decision-makers is relevant to Plaintiff's claims and may lead to admissible evidence regarding discriminatory motive, retaliatory intent, pretext, or a pattern or practice of discrimination.

Defendant has not demonstrated that its objections are meritorious or that its responses are Code-compliant. The record reflects Defendant failed to timely serve responses, thereafter served only unverified responses containing objections, and despite repeated assurances that verified supplemental responses would be forthcoming, failed to provide either verifications or supplemental responses before the filing of this motion. The Court concludes Defendant has not met its burden of justifying its objections or incomplete responses.

Sanctions: Monetary sanctions are mandatory against anyone who makes or opposes a motion to compel further response to Form or Special Interrogatories unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2030.300(d). While Defendant did not provide a substantive opposition, Plaintiffs still had to file the motion in order to obtain discovery. “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” CRC 3.1348(a). Plaintiffs request \$2,250 in monetary sanctions which is comprised of five attorney hours at \$450 per hour.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiffs hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. Total sanctions are \$1,200.00.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set Two is **GRANTED**. Sanctions of \$1,200.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed order was lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the order.

PERRY VS. ADVANCED CRISIS SOLUTIONS, INC.

CASE NUMBER: 24CV-0205612

Tentative Ruling on Motion to Compel Further Responses to Requests for Production: Plaintiff Larissa Perry seeks an order compelling Defendant Advanced Crisis Solutions, Inc. to provide complete Code-compliant responses to Plaintiff's Requests for Production of Documents,

Set Two Nos. 65-80 and 85. The Motion is properly noticed and unopposed.

Meet and Confer: Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of Noriya Bragg establishes compliance with this requirement.

Merits: The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A propounding party may move for an order compelling further responses to requests for production if: 1) the response to a request for production is incomplete; 2) a representation of inability to comply is inadequate, incomplete, or evasive; or 3) an objection to the request is without merit or too general. CCP § 2031.310(a). A motion to compel further responses for production must show “good cause” for the request. CCP § 2031.310(b)(1). “Good cause” can be established by showing the request was made in good faith and the documents sought are relevant to the action. *Associated Brewers Distributing Co. v. Superior Court of Los Angeles County* (1967) 65 Cal.2d 583, 588. Once good cause is established, the burden shifts to the opposing party to justify their objection. *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.

Here, Plaintiff seeks to compel further responses to Plaintiff's Requests for Production of Documents, Set Two Nos. 65-80 and 85. The discovery was served on Defendant on January 29, 2026, and responses were due March 3, 2026. On June 5, 2026, Defendant served unverified responses containing objections and did not provide any responsive documents.

Plaintiff has established good cause to compel further production. The documents sought are reasonably calculated to lead to the discovery of admissible evidence. Defendant has not provided any justification for objections to further production. Plaintiff is entitled to an order compelling further responses.

Sanctions: Monetary sanctions are mandatory against anyone who unsuccessfully makes or opposes a motion to compel further response to a demand unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2031.310(h). While Defendant did not provide a substantive opposition, Plaintiffs still had to file the motion in order to obtain discovery. “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” CRC 3.1348(a). Plaintiffs request \$3,600 in monetary sanctions which is comprised of eight attorney hours at \$450 per hour.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiffs hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 3, because no opposition was filed and no reply brief was needed. Total sanctions are \$2,250.00.